

DISCIPLINE CASE DIGEST



Case: 2014-05
Subject Member: Bruce Raby, RPF #4633
Referred to: Discipline Committee
Date of Decision: January 2018
Type: Negotiated Settlement and Consent Order

The Complaint

In July 2014, the president of the ABCFP submitted a complaint on behalf of the Association regarding the professional practice of Bruce Raby, RPF (“Mr. Raby”). The complaint cited the findings of a 2013 Forest Practices Board audit which reviewed the planning, design and construction of bridges in the forest sector across five different natural resource districts. The allegations contended that Mr. Raby contravened ABCFP Bylaws and safety concerns with respect to a temporary bridge near Vanderhoof, B.C. (the “Bridge”) in his role as Coordinating Registered Professional (“CRP”). The complaint allegations related to concerns for safety, documentation and structural integrity of the simple crossing.

Mr. Raby was invited to respond to the complaint allegations. The complaint and Mr. Raby’s response were reviewed by the Complaints Resolution Committee (“CRC”) and referred to the Standing Investigations Committee (“SIC”) for further investigation. The SIC established an investigation committee which examined the allegations and interviewed witnesses. The investigation committee found and reported that there was a reasonable basis to issue a citation against Mr. Raby for a discipline hearing.

The CRC reviewed the investigation report and Mr. Raby’s submissions in response to the report. The CRC recommended that the registrar write a citation for a discipline hearing. The citation was issued and Mr. Raby tendered a proposal to the registrar. The registrar and Mr. Raby agreed to a set of terms that were reviewed by a panel of the Discipline Committee. The panel accepted the proposal and made an order pursuant to section 27(4) of the *Foresters Act* (the “Consent Order”).

Decision

See the attached Consent Order.

Discussion

This complaint investigation and decision highlighted the importance of ensuring that bridge structures are adequately inspected prior to use. Members who work as CRPs must ensure that proper protocols are in place to plan and coordinate assessments and activities in order to confirm that structures used for crossings are structurally sound, safe for use, and appropriate for the site. This is particularly important when structures are used repeatedly for temporary installations in different locations over time.

The professional practice guidelines¹ (“Guidelines”) developed for crossings by the ABCFP and APEGBC are an important tool to understand the obligations and roles of those involved in crossing design and installation. These Guidelines underwent a vote of the membership and were incorporated into the ABCFP Standards of Professional Practice as Bylaw 12A Forest Resource Operations².

“Every member providing services included in the practice of professional forestry in relation to a crossing project must comply with the Guidelines.”

The Guidelines cite ABCFP bylaws regarding safety and competence, noting that a failure to comply with the guidelines is cause for disciplinary action by the profession.

Crossing installation is one of the more visible and higher risk areas of professional practice. The consequences of poor professional performance undermines the public interest by compromising worker or public safety. Member competence and diligence in this area of practice has come under close scrutiny in recent years. ABCFP members who work as CRPs should have their work and practices peer reviewed periodically to ensure that they have appropriate protocols in place to maintain their diligence and protect themselves from complaints of this nature.

¹ Guidelines for Professional Services in the Forest Sector – Crossings, APEGBC & ABCFP, June 2014

² ABCFP Bylaws. Bylaw 12 Standards of Professional Practice. November 2015. Page 33.

IN THE MATTER OF THE FORESTERS ACT

S.B.C. 2003, CHAPTER 19

And

IN THE MATTER OF BRUCE RABY, RPF

Consent Order

The following order is made by a panel of the Association of BC Forest Professionals ("ABCFP") discipline committee as required under Section 27(4) of the *Foresters Act*. The terms of this order represent a negotiated agreement between the subject member and the registrar as specified in bylaw 13.41 and 13.42. The panel accepts the following statements and conditions which will be carried out by the subject member under the direction of the ABCFP.

Background and Facts

1. The following facts form the basis for this order:

- a. As part of a 2013 audit review of the planning, design and construction of bridges in five Forest Districts, the Forest Practices Board (the "Board") inspected a pre-fabricated 6 metre steel girder temporary bridge known as BAR018 (the "Bridge") that had been installed over a crossing near Vanderhoof, B.C.
- b. The Bridge was inspected by a board auditor (the "Board Auditor") on July 30, 2013.
- c. The Bridge is a "simple crossing" as defined in section 3.0 of the *Guidelines for Professional Services* in the forest sector-crossings. The Bridge was a temporary Bridge, intended to be used several times, and had been used previous to its installation. There is no evidence from the previous uses of safety related problems related to the condition of the Bridge.
- d. Mr. Bruce Raby was the Coordinating Registered Professional ("CRP") with respect to the Bridge. Mr. Raby originally inspected the Bridge in the Canfor yard in Vanderhoof, B.C.
- e. Mr. Raby held a pre-work meeting with the contractor responsible for installing the Bridge. The contractor inspected the Bridge and reported to Mr. Raby that there were no concerns. Mr. Raby then inspected the Bridge as installed. Mr. Raby did not observe any cracks or mechanical damage during his inspection of the Bridge.

- f. Following his inspections, Mr. Raby completed a Canfor internal inspection form entitled Temporary Bridge Specifications, Pre-work, Certification, Inspection (the "Inspection Form"). Mr. Raby incorrectly completed the Inspection Form by filling in "N/A" in answer to the question: "*Girders, cross bracing, guardrails undamaged?*", when he meant to indicate they were not based on his inspections. Mr. Raby acknowledges that this was a mistake on his part.
- g. Mr. Raby completed and signed and sealed the Crossing Assurance Statement ("CAS") on July 12, 2013.
- h. The Bridge was installed on June 27, 2013. Hauling on the Bridge commenced on July 11, 2013.
- i. During the inspection of the Bridge, the Board Auditor identified mechanical damage and cracks to some of the girders which were clearly visible. The Board Auditor set up a video of the Bridge use which revealed that one of the cracks spread open when a logging truck crossed the Bridge. The Board Auditor noted six (6) discreet flange dents or incidents of mechanical damage to some of the girders on the Bridge which were visible upon inspection.
- j. The Board Auditor recommended that the hauling be stopped immediately.
- k. Mr. Raby contacted the contractor as soon as he was notified by the Board Auditor and told the contractor to stop hauling to ensure that no further loads were taken across the Bridge.
- l. The Board Auditor opined that the dents, bent flanges and other mechanical damage to the Bridge could only have occurred from lifting and handling the Bridge with heavy equipment or possibly from dragging or dropping it onto rocks or other solid objects during the moving or loading/off-loading prior to hauling on the Bridge. The Board Auditor felt that this type of mechanical damage does not occur from stresses imposed from loading cycles during hauling.
- m. The Board Auditor was unable to conclude whether the cracks developed during hauling cycles subsequent to installation of the Bridge (as a direct result of stress concentrations caused by previous existing mechanical damage to the girders) or from previous use of the Bridge.
- n. On or about July 31, 2013, Mr. Raby contacted the Board Auditor to discuss the Bridge issues and arranged for the replacement of the Bridge which was completed later that day.
- o. Before Mr. Raby was notified of the Board Auditor's concerns, a number of fully loaded logging trucks passed over the Bridge and the Bridge did not collapse.
- p. In assessing a complaint made to the ABCFP regarding Mr. Raby's role and installation of the Bridge, the ABCFP Standing Investigations Committee ("SIC") concluded that a routine inspection should have noted the mechanical damage to the Bridge. The SIC also

concluded on a balance of probabilities that the majority of the mechanical damage occurred prior to Mr. Raby selecting the Bridge in the Canfor yard.

- q. The SIC concluded the CAS which Mr. Raby signed was accurate in that significant aspects of the work generally conformed with the plans and supporting documents.
- r. Mr. Raby acted professionally with due regard for safety of others when he was notified of the Board Auditor's safety concerns regarding the Bridge.
- s. On January 12, 2017, the ABCFP issued a citation to Mr. Raby under section 24(4)(a) of the *Foresters Act* alleging, *inter alia*, that in his capacity as CRP on a Bridge crossing installation, Mr. Raby:
 - a. failed to ensure the Bridge structure was safe for use, pursuant to ABCFP Bylaw 11.3.10;
 - b. failed to correctly document the damage to the Bridge structure, pursuant to ABCFP Bylaw 12.2.2; and
 - c. failed to adequately assess the mechanical damage and cracks to the Bridge structure, pursuant to ABCFP Bylaw 12.5.1.
- t. There is no evidence that Mr. Raby knew the Bridge may have been unsafe; that he deliberately did something that was unsafe; or that he was wilfully blind in respect of the safety of the Bridge.

Admissions

2. Mr. Raby admits that he:

- (a) failed to ensure the Bridge was safe for use, contrary to ABCFP Bylaw 11.3.10;
- (b) failed to correctly document the condition of the Bridge structure, contrary to ABCFP Bylaw 12.2.2; and
- (c) failed to adequately assess the mechanical damage and cracks to the Bridge structure, contrary to ABCFP Bylaw 12.5.1.

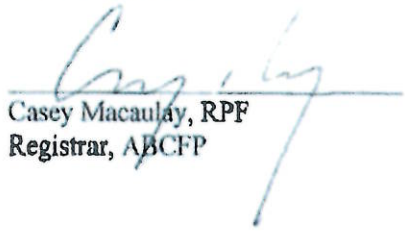
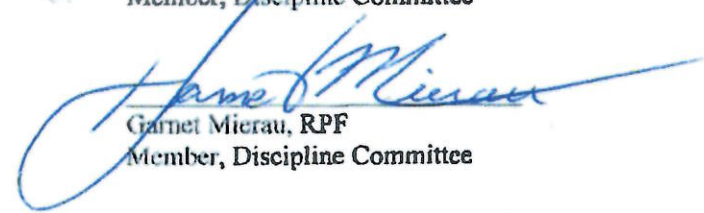
Disposition

- 3. Mr. Raby will pay a fine of \$1,000.00 to the ABCFP, payable within 30 days of the date of this Consent Order.
- 4. Mr. Raby accepts a written reprimand from the ABCFP and agrees to have the reprimand remain on his file.

Consequences of the Consent Order

5. The full text or a summary of this Consent Order will be published by ABCFP in print and electronic publications including on the ABCFP's website.
6. Mr. Raby agrees to have his name and the details of the settlement published in a discipline digest.
7. ABCFP and Mr. Raby agree that this Consent Order may be executed in counterparts and delivered as an electronic document.

This Consent Order is approved and accepted by Mr. Raby and the members of the Discipline Committee panel this 29th day of December, 2017.


Bruce Raby, RPF
Casey Macaulay, RPF
Registrar, ABCFP
Ian Brown, RPF
Chair, Discipline Committee Panel
Carolyn Stevens, RFT
Member, Discipline Committee
Garnet Mierau, RPF
Member, Discipline Committee